NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH – II
CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, CHENNAI BENCH, HELD ON 07-12-2022 AT 10.30 A.M. THROUGH VIDEO CONFERENCING:

PRESENT : DR. DEEPTI MUKESH, HON'BLE MEMBER (JUDICIAL)
SHRI. SAMEER KAKAR, HON'BLE MEMBER (TECHNICAL)

PETITION NUMBER	**: CP(CAA)/108(CHE)2022**
APPLICATION NUMBER	**: CA(CAA)/128(CHE)2021**
NAME OF THE PETITIONER	**: Coimbatore Anamallais Agencies Private Limited**
NAME OF THE RESPONDENT(S)	**: --**
UNDER SECTION	**: Sec 230 - 232 of CA, 2013**

NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH – II
CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, CHENNAI BENCH, HELD ON 07-12-2022 AT 10.30 A.M. THROUGH VIDEO CONFERENCING:

PRESENT : DR. DEEPTI MUKESH, HON'BLE MEMBER (JUDICIAL)
SHRI. SAMEER KAKAR, HON'BLE MEMBER (TECHNICAL)

PETITION NUMBER	**: CP(CAA)/109(CHE)2022**
APPLICATION NUMBER	**: CA(CAA)/129(CHE)2021**
NAME OF THE PETITIONER	**: Trichy Anamallais Agencies Private Limited**
NAME OF THE RESPONDENT(S)	**: --**
UNDER SECTION	**: Sec 230 - 232 of CA, 2013**

COMMON ORDER

2)CP(CAA)/108(CHE)/2022 IN CA(CAA)/128(CHE)/2021

3)CP(CAA)/109(CHE)/2022 IN CA(CAA)/129(CHE)/2021

Counsel for the Petitioners is represented by Ld. Counsel Mr. R. Vidhya Shankar.

1. Under consideration are two separate Company Petitions, namely M/s. COIMBATORE ANAMALLAIS AGENCIES PRIVATE LIMITED (for brevity "Petitioner / Demerged Company") and M/s. TRICHY ANAMALLAIS AGENCIES PRIVATE LIMITED (for brevity "Petitioner / Resulting Company") are coming up for admission and for fixing a date of hearing of the main Company Petitions as well as for a direction in relation to publication in press to be effected and notices to be issued to the authorities concerned in relation to date of hearing of the Petitions and calling for the objections, if any, to the Scheme of Arrangement (DEMERGER) (hereinafter for brevity referred to as "SCHEME") contemplated between the Petitioner Companies - M/s. COIMBATORE ANAMALLAIS AGENCIES PRIVATE LIMITED (for brevity "Demerged Company") and M/s. TRICHY ANAMALLAIS AGENCIES PRIVATE LIMITED (for brevity "Resulting Company") and their respective shareholders and creditors. The Registered offices of the Demerged Company viz. M/s. COIMBATORE ANAMALLAIS AGENCIES PRIVATE LIMITED and Resulting Company M/s. TRICHY ANAMALLAIS AGENCIES PRIVATE LIMITED are situated at Coimbatore and falls within the territorial jurisdiction of NCLT, Chennai.

2. From the records, it is seen that the First Motion Applications vide CA(CAA)/128(CHE)/2021 & CA(CAA)/129(CHE)/2021 were ordered by this Tribunal on 03.02.2022.

3. Subsequent to the said order, the Chairperson Report and Scrutinizer Report were filed with the Registry of this Tribunal on **27.05.2022** vide **S.R.Nos.3304 and 3305** respectively for CA(CAA)/128(CHE)/2021. Consequent to this, delay of 45 days in filing the second motion petitions were condoned vide orders dated 02.11.2022 passed in Comp.Appl/11(CHE)/2022 in CA(CAA)/128(CHE)/2021 and CP(CAA)/104/CHE/2022 in CA(CAA)/129(CHE)/2021 and the second motion petitions were filed on **18.07.2022** which is coming up before us for fixing a date of hearing as well as for other consequential directions in terms of provisions of Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016, and it is now hereby ordered as follows:-

(i) The date of hearing of the Petitions filed by the Petitioner Companies for the sanction of the Scheme is fixed on **25.01.2023**.

(ii) Notice of the hearing shall be advertised in the newspapers viz., **"The Hindu" (English) (All India Edition)** and **"Dinathanthi" (Tamil) (Tamil Nadu Edition)** not less than 10 days before the aforesaid date fixed for hearing.

(iii) In addition to the above public notice, each of the Petitioners individually shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through the office of the Regional Director (Southern Region), Ministry of Corporate

Affairs (MCA) (b) Registrar of Companies, Coimbatore, MCA (c) the Jurisdictional Income Tax office having jurisdiction over the respective companies indicating specifically their PAN No. in the communication with copy to Principal Chief Commissioner of Income Tax and other sectoral regulators, if any, who may govern the working of the respective companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petitions.

(iv) Further, notice shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in relation to their representation along with copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.

(v) The Petitioner shall file an affidavit of service (7 days before the date of hearing of the Petition) in relation to paper publication effected as well as service of notices on the Authorities specified above.

(vi) Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given on or before the date of hearing fixed herein may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities by this Tribunal and subject to other condition being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vii) The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section

230, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's auditor.

(viii) The next date of hearing of the Petitions shall be on **25.01.2023** for the consideration of the approval of the Scheme as contemplated by the Petitioner Companies.

(ix) Both the petitions are hereby admitted by this common order.

-Sd-

SAMEER KAKAR
Member (Technical)

-Sd-

DR. DEEPTI MUKESH
Member (Judicial)

Phk